



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Erin Fagan
Subject: UDC-23-00065 | 5224 Ridge Road – Annexation
Date: April 5, 2023

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/10/2023
- Public Services Committee 4/18/2023
- Second reading 4/24/2023
- Public Services Committee 5/2/2023
- Third and final reading 5/8/2023

Related Items:

- UDC-23-00065-01: Zoning Map Amendment

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED WEST OF RIDGE ROAD, BETWEEN JACKSON STREET AND DOUGLAS STREET."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Christian and Missionary Alliance Church of Cheyenne, owners of:

A portion of Tract 12, Dell Range Addition, Laramie County, Wyoming, more particularly described as follows:

Tract 12 Less Alliance Addition, 1st & 2nd Filings as described BK 1148 PG 1486; also less (.85 ac) desc as beg at the northeast corner of Tract 12, the S 00 deg 03' 56" W, along the east line of Tract 12, 120.00'; the N 89 deg 25' 35" W, 309.91' to the southeast corner or Alliance Addition, 2nd Filing; the N 00 deg 00' 31" E, along the east line of sd Alliance Addition, 2nd Filing, 120.00' to the north line of sd Tract 12; the S 89 deg 25' 35" E, along sd north line, 310.02' to the point of beg, Dell Range Addition

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof;

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Gary N. Grigsby, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 9283;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MR Medium-density Residential by the Laramie County Commissioners; and,
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the

entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

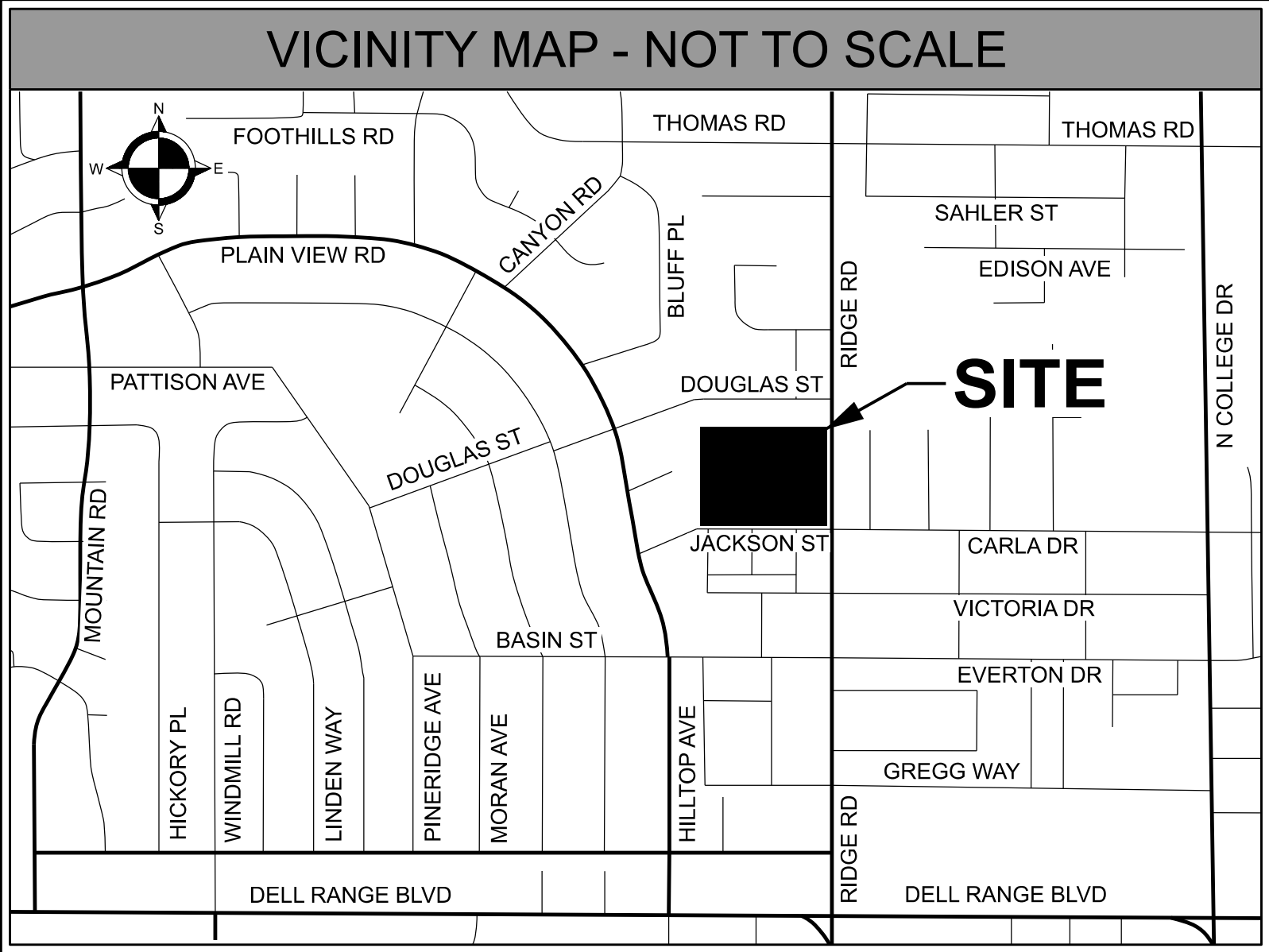
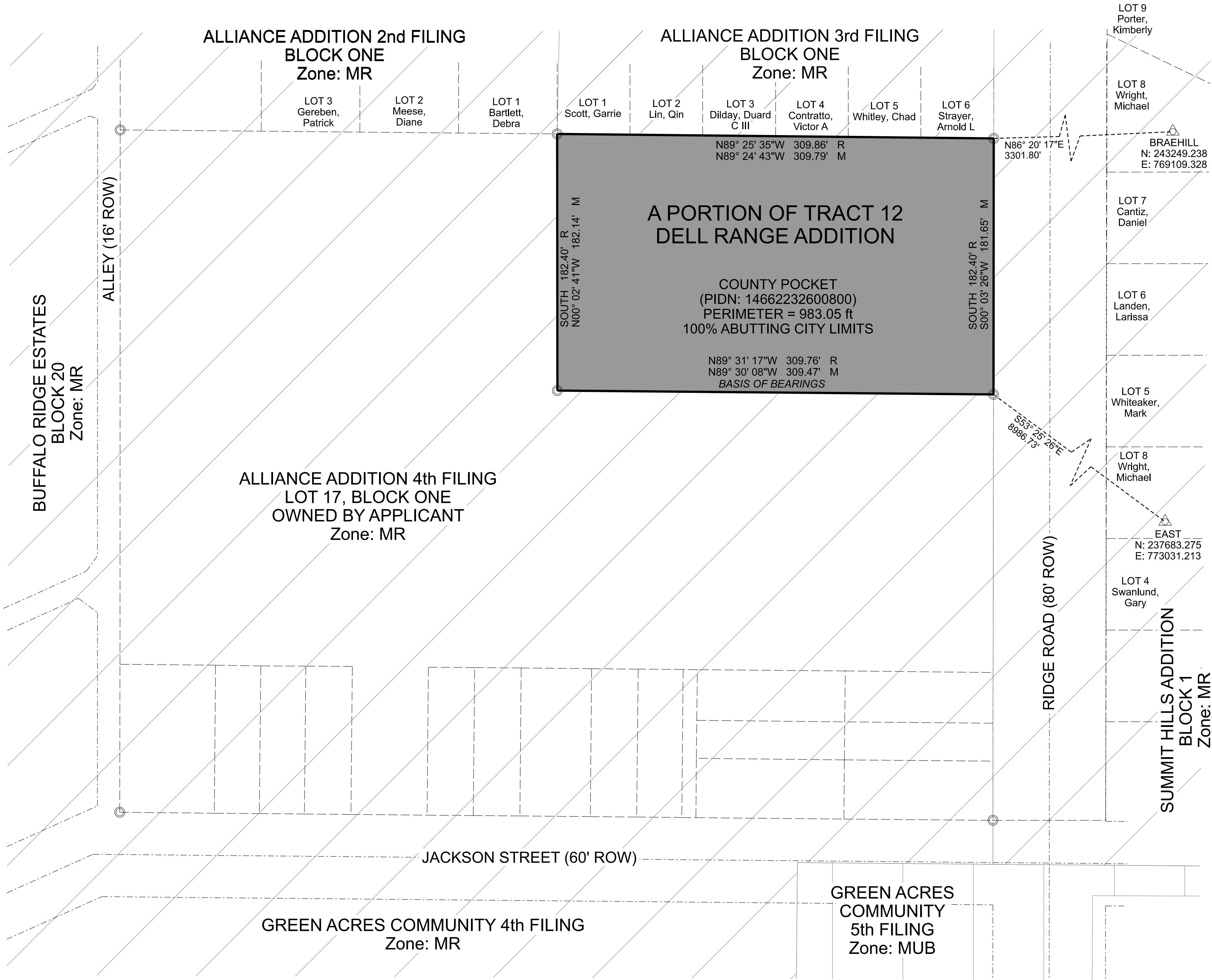
(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

ANNEXATION REQUEST - COUNTY POCKET
A PORTION OF TRACT 12, DELL RANGE ADDITION



APPROVALS

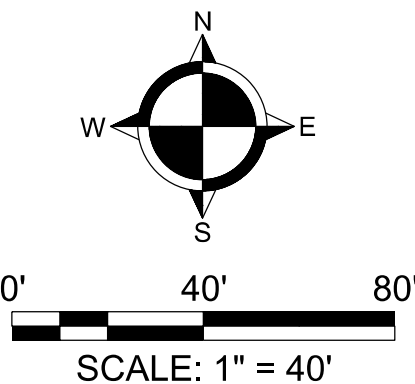
Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2023.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of _____, 2023.

Mayor

ATTEST: _____
City Clerk



LEGEND OF SYMBOLS & ABBREVIATIONS

	PROPERTY BOUNDARY
	RIGHT OF WAY
	EXISTING PROPERTY LINES
	EXISTING PROPERTY LINES
	PROPOSED ANNEXATION / ZONING MR
	CITY OF CHEYENNE
	EXISTING ZONING MR
	CITY OF CHEYENNE
	EXISTING ZONING MUB
	RECORD DISTANCE
	MEASURED DISTANCE
	FOUND MONUMENTS
	CITY CONTROL MONUMENT

ANNEXATION AND ZONING MAP

FOR
A PORTION OF TRACT 12
DELL RANGE ADDITION

A COUNTY POCKET LOCATED IN A PORTION OF
TRACT 12, DELL RANGE ADDITION
LARAMIE COUNTY, WYOMING
PREPARED FEBRUARY 2023

CERTIFICATE OF SURVEYOR

State of Wyoming } ss
County of Laramie }

I, Gary N. Grigsby, a Professional Engineer and Land Surveyor registered in the State of Wyoming do hereby certify that this Map was prepared from the records and field notes of a survey conducted under my supervision during the month of February 2023, and that this map correctly shows found monuments and other details are correct to the best of my knowledge and belief.

Gary N. Grigsby, Wyoming PE & PLS #9283
February 28, 2023 (Job 23007)
For and on behalf of Y2 Consultants

MISCELLANEOUS NOTES

- BASIS OF BEARING: BEARINGS ARE BASED ON THE SOUTH LINE OF THE PORTION OF TRACT 12, DELL RANGE ADDITION BEING N89°30'08"W, SAID LINE BEING MONUMENTED ON THE EAST BY A REBAR WITH ALUMINUM CAP STAMPED PLS 2500 AND ON THE WEST BY A REBAR WITH ALUMINUM CAP WITH ILLEGIBLE MARKINGS.
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- PARCEL DESCRIPTION IS BASED ON THIS PORTION OF TRACT 12, DELL RANGE ADDITION HAVING SENIOR RIGHTS AND AS RECORDED IN BOOK 1900 AT PAGE 2114.

PARCEL DESCRIPTION

TRACT 12, DELL RANGE ADDITION, A SUBDIVISION OF PART OF THE WEST ONE-HALF OF SECTION 22, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING LESS THAT PORTION DESCRIBED IN WARRANTY DEED RECORDED IN BOOK 1148, PAGE 1486 AND LESS THAT PORTION BEING THE NORTH 120 FEET OF THE EAST HALF OF TRACT 12, DELL RANGE ADDITION, RECORDS OF LARAMIE COUNTY, WYOMING.

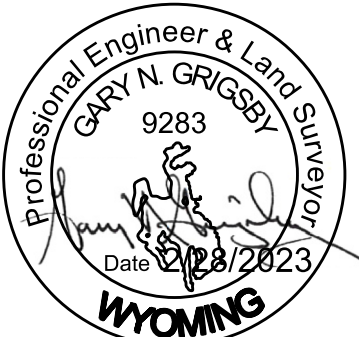
PARCEL CONTAINING 1.29 ACRES, MORE OR LESS.

DRAWING SET TITLE	Application Map
DATE	02/28/2023
JOB #	23007
ORIGINAL SHEET SIZE:	24" x 36"
DRAWN BY:	LB/MXV
CHECKED BY:	GNG

Y2 CONSULTANTS

ENGINEERING, SURVEYING & PLANNING
LANDSCAPE ARCHITECTURE, GIS
NATURAL RESOURCE SERVICES

Y2consultants.com
307 733 2989



XL CHARTER DEVELOPMENT, LLC
150 S STATE STREET
SALT LAKE CITY, UT 84111

ANNEXATION AND
ZONING MAP

SHEET NUMBER
1 of 1



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

MARCH 27, 2023

STAFF REPORT

FILE: UDC-23-00065: 5224 Ridge Road - Annexation

REQUEST: An annexation of 1.29 acres of land.

LOCATION: West of Ridge Road, between Jackson Street and Douglas Street

APPLICANT: Clayton Howell

AGENT: John Lopeman

OWNERS: Jason Taylor – Cheyenne Alliance Church

PURPOSE: Owner request

PREPARED BY: Erin Fagan, Planner II



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing 1.29 acres of land. The land is currently developed with church building. A zone change is proposed concurrently with this annexation. All applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County MR to City MR.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County MR Medium-density Residential	Church
North	Urban Residential	MR Medium-density Residential	Residential
South	Urban Residential	MR Medium-density Residential	Church
East	Urban Residential	MR Medium-density Residential	Residential
West	Urban Residential	MR Medium-density Residential	Church

The property is currently zoned MR in the County. The property is concurrently proposed to be annexed and rezoned to the City zone of MR. The City MR zone is intended for Medium-density Residential Development.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation services.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property will constitute a natural, geographic, economic, and social part of the city. The property is a County pocket and adjacent to the City on all sides of the property. The contiguity to the City and the proximity to surrounding urban-style development makes the parcel a

natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be better for the area upon annexation. Utilities exist in the area.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is 100% contiguous.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on March 13, 2023. The public hearing for this annexation is scheduled for March 27, 2023. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is February 27, 2023.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Policies within PlanCheyenne encourage the annexation of County pockets. This is a County Pocket.

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with urban residential uses. These areas can develop with or without access to urban services. The area is within the Urban Service Boundary.

STAFF REVIEW:

City Engineering:

1. Boundary data and legal descriptions appear in order.
2. Double check survey ties to City Control Stations.
3. Provide Coordinates for the NE and SE corners tied to City Control Stations.
4. On the map (shaded parcel being annexed) provide the acreage figure.

Environmental Health Department:

Laramie County Small Wastewater System Regulations: The existing septic system shall be properly abandoned and inspected by this office. Contact Environmental Health (307) 633-4090.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

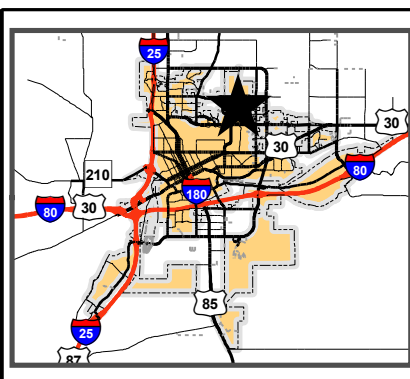
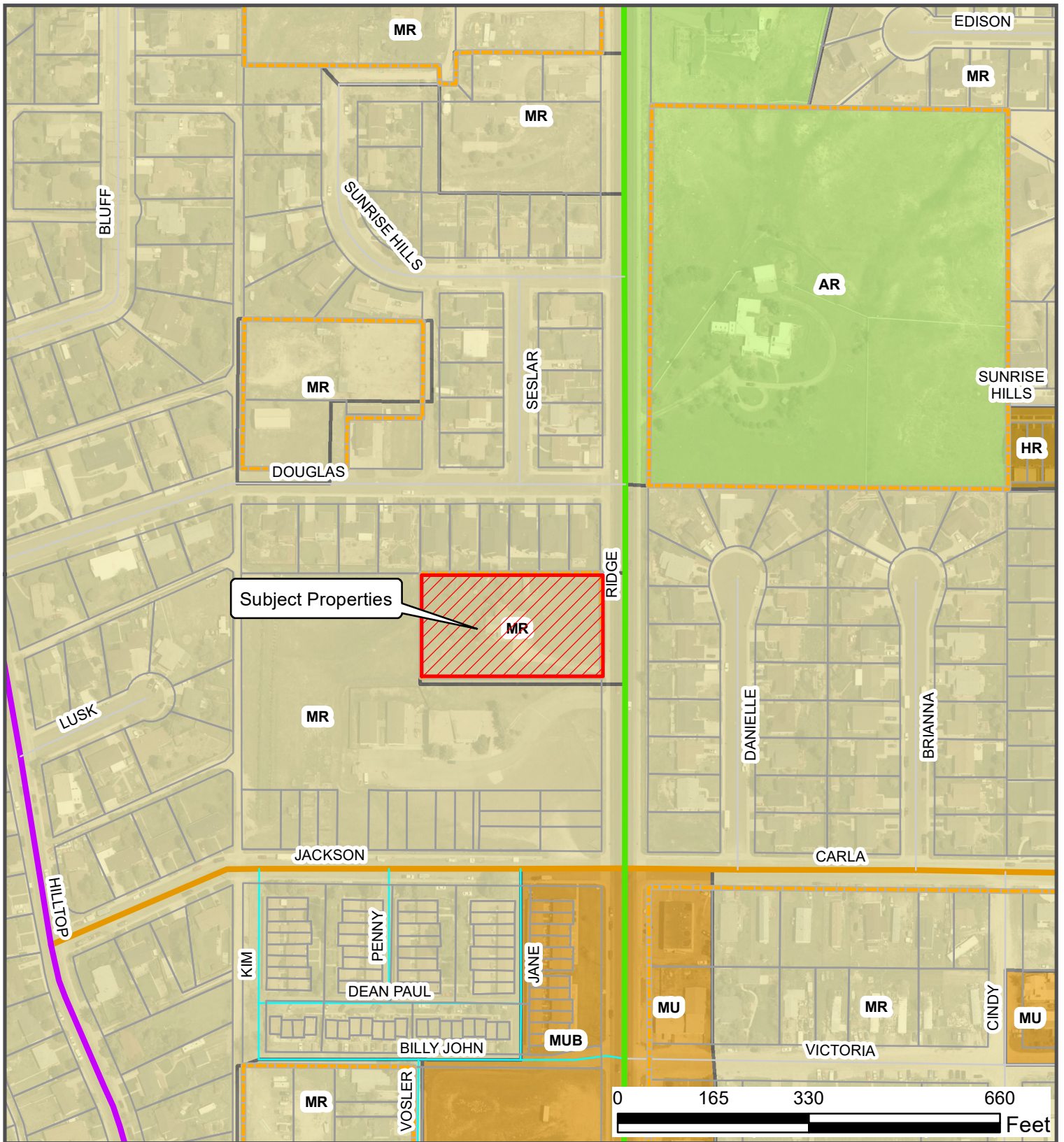
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map

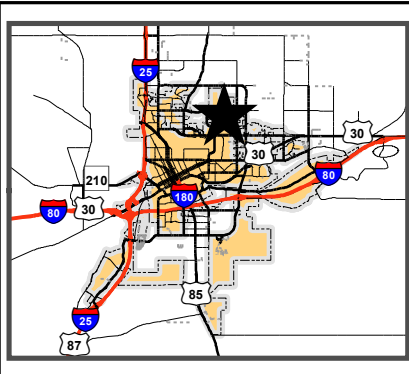
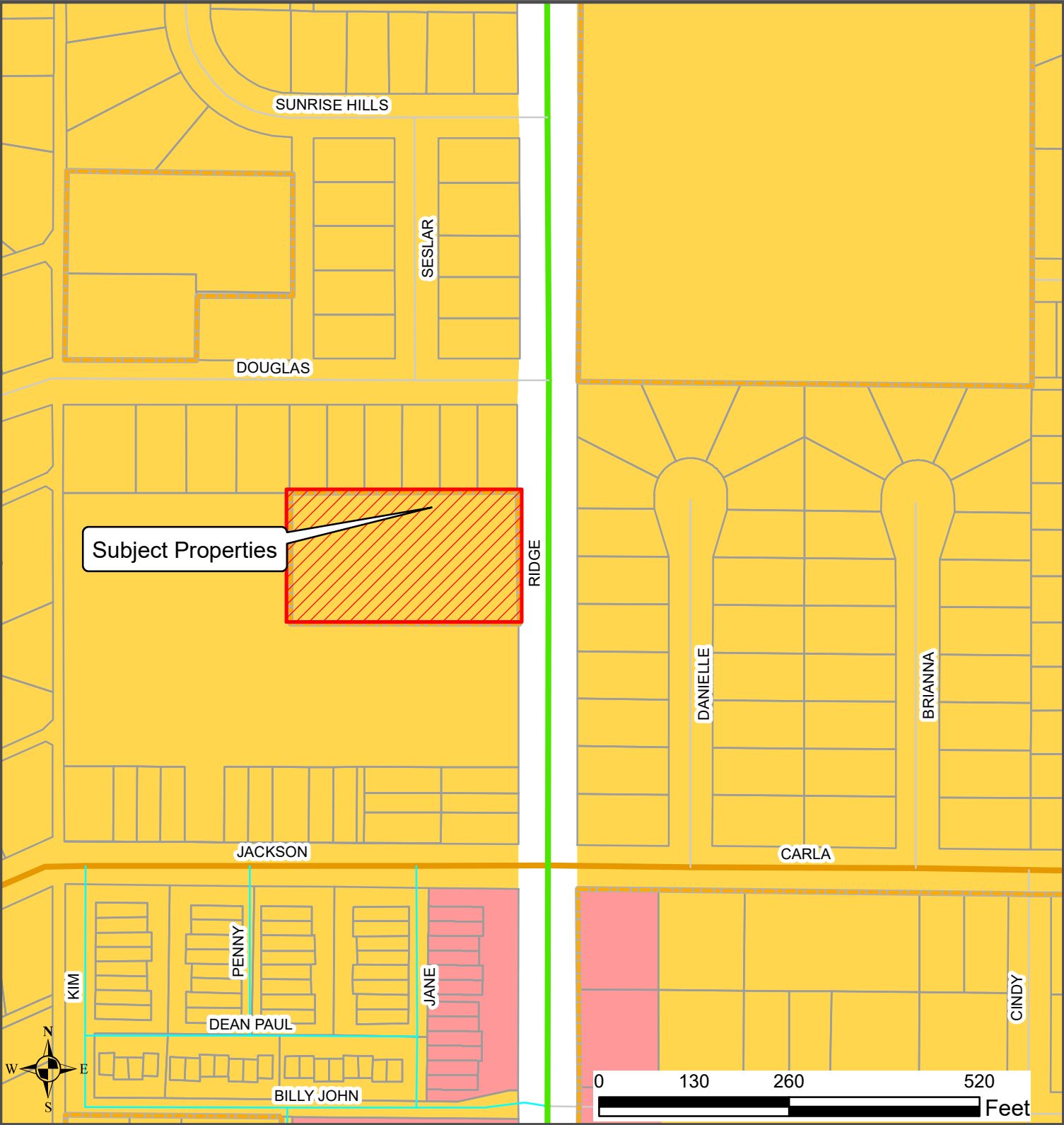


Attachment 1: Zoning Map UDC-23-00065

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-23-00065

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Ownership		

Planning and Development: Annexation Application

Submission date: **1 March 2023, 11:52AM**
Receipt number: **26**
Related form version: **13**

General Information

Applicant Name:	Clayton Howell
Applicant Address:	460 N. 300 E
Applicant City:	Kaysville
Applicant State:	Utah
Applicant Zip Code:	84025
Applicant Phone:	801-725-6118
Applicant Email	clayton@xlcharterdevelopment.com
Representative Name:	John Lopeman
Representative Address:	8985 South Eastern, Suite 220
Representative City	Las Vegas
Representative State:	Nevada
Representative Zip Code:	89123
Representative Phone:	702-456-1070
Representative Email:	buildingpermit@ethosthree.com
Owner Name:	Jason Taylor - Cheyenne Alliance Church
Owner Address:	3501 Forest Drive
Owner City:	Cheyenne

Owner State:	Wyoming
Owner Zip Code:	82001
Owner Phone:	307-635-1014
Owner Email:	office@cheyennealliance.org
Who is the primary contact regarding this application?	Representative
Letter of Authorization	5200 Ridge Road_letter-of-authorization(exec).pdf
Project Location (Street Address or General Location):	5224 Ridge Road
Assessor's Parcel ID number(s)	14662232600800
Total Project Area	6.7 acres
Current Zoning	County Pocket
Proposed Zoning	MR - Medium-density Residential

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	A portion of tract 12 Dell Range Addition
Formal Annexation Petition	annexation-petition-SIGNED.pdf
Board of Public Utilities Clearance Form	annexation-BOPU-SIGNED.pdf
Annexation Map	23007v-Zone-Annex-Map-STAMPED.pdf
Final stamped and signed mylars are required prior to scheduling for Governing Body introduction.	

Signature / Certification

Applicant Signature

Name of signatory: John Lopeman, Principal

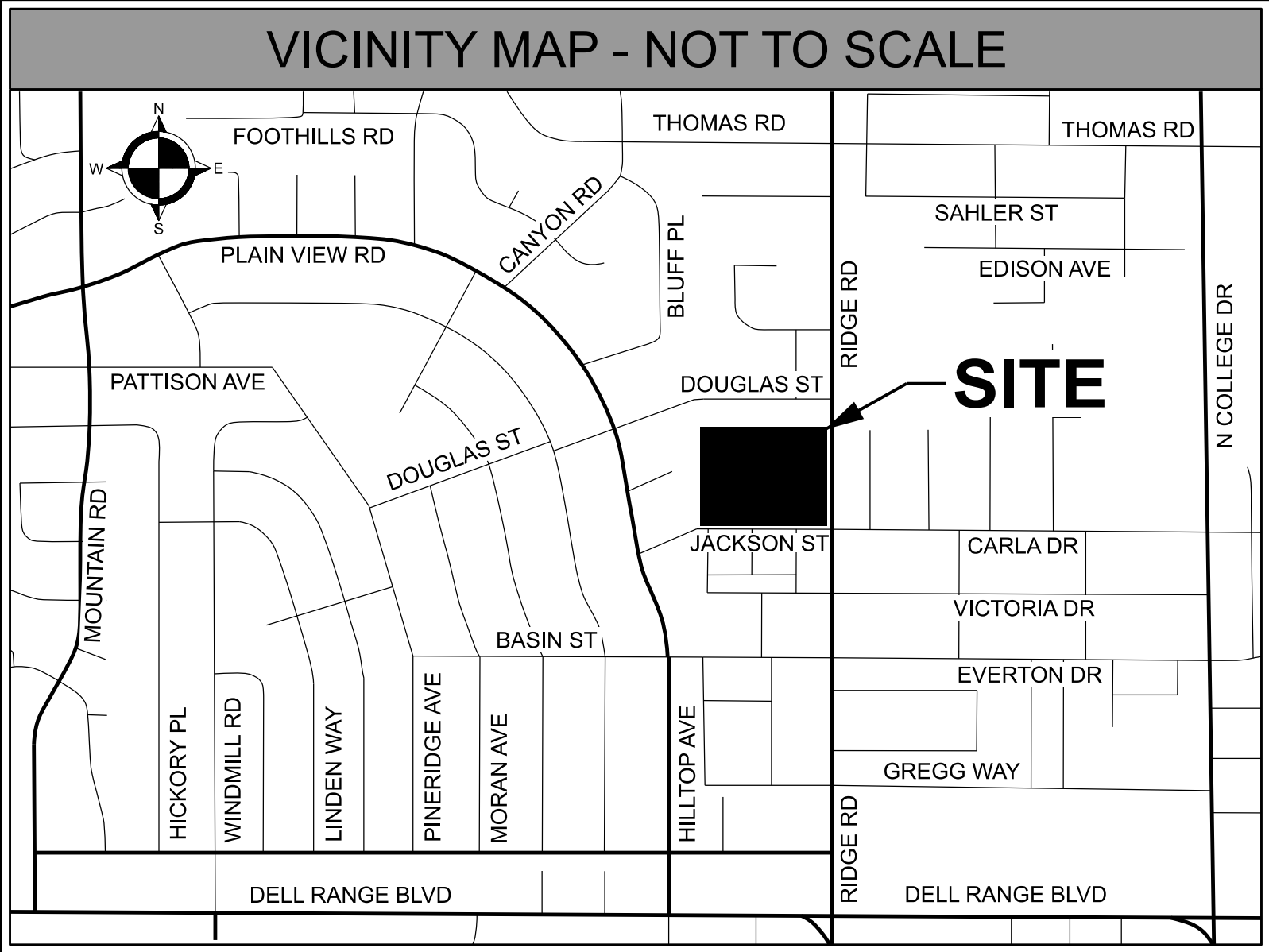
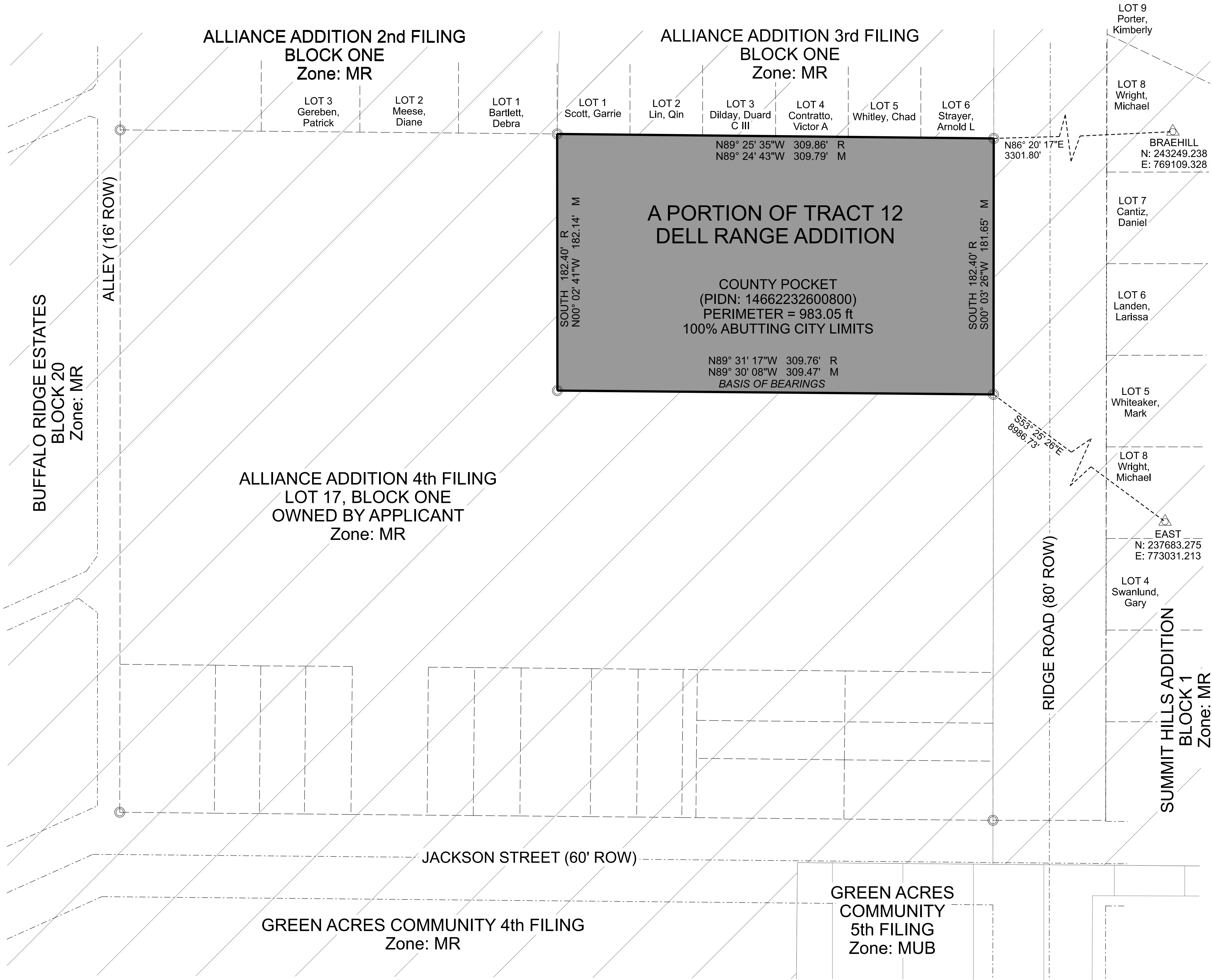
A handwritten signature in black ink, appearing to read 'John', with a long horizontal flourish extending to the right.

Uploaded signature image: [JCL Signature.jpg](#)

Please enter an email address for an email receipt.

buildingpermit@ethosthree.com

ANNEXATION REQUEST - COUNTY POCKET
A PORTION OF TRACT 12, DELL RANGE ADDITION



APPROVALS

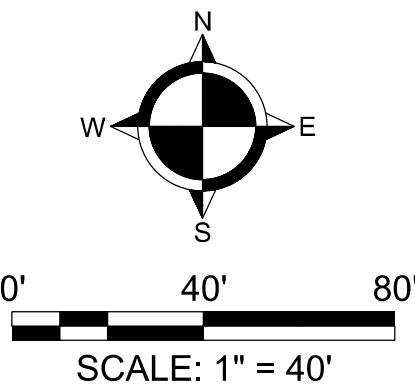
Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2023.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of _____, 2023.

Mayor

ATTEST: _____
City Clerk



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	RIGHT OF WAY
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ANNEXATION AND ZONING MAP

FOR
A PORTION OF TRACT 12
DELL RANGE ADDITION

A COUNTY POCKET LOCATED IN A PORTION OF
TRACT 12, DELL RANGE ADDITION
LARAMIE COUNTY, WYOMING
PREPARED FEBRUARY 2023

CERTIFICATE OF SURVEYOR

State of Wyoming } ss
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February 28, 2023 (Job 23007)
For and on behalf of Y2 Consultants

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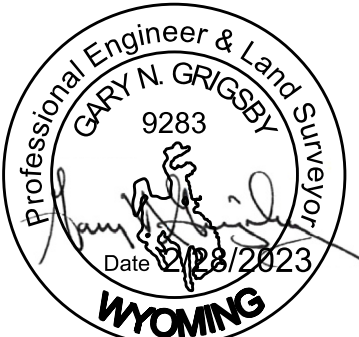
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ENGINEERING, SURVEYING & PLANNING
LANDSCAPE ARCHITECTURE, GIS
NATURAL RESOURCE SERVICES

Y2consultants.com
307 733 2989



XL CHARTER DEVELOPMENT, LLC
150 S STATE STREET
SALT LAKE CITY, UT 84111

ANNEXATION AND
ZONING MAP

SHEET NUMBER
1 of 1